
2:00 PM - LINE 9

25-CLJ-02194

MICHAEL WASILEWSKI VS. RENEE HANSEMAN, ET AL

MICHAEL WASILEWSKI
RENEE HANSEMAN

PRO PER

MOTION FOR LEAVE TO AMEND REQUEST TO FILE OPPOSITION TO DEMURRER DUE TO "BAD FAITH"

TENTATIVE RULING:

Plaintiff's motion is **DENIED as moot**. The court heard defendant's demurrer on February 18, 2026. The minutes show that plaintiff was present in person and defendant State Farm's counsel appeared by Zoom.

Before the hearing, the court issued a tentative ruling, which it adopted at the hearing. The tentative ruling provided in part that "[d]efendant State Farm General Insurance Company's demurrer to plaintiff Michael Wasilewski's complaint is SUSTAINED with leave to amend. Any amended complaint must be filed within ten (10) days of notice of entry of the formal order" and further required defendant's counsel to prepare the formal order.

Code of Civil Procedure, section 472b states in pertinent part that "[w]hen a demurrer to any pleading is sustained or overruled, and time to amend or answer is given, the time so given runs from the service of notice of the decision or order, unless the notice is waived in open court, and the waiver entered in the minutes." Defendant's counsel did not submit a formal order for the court's signature. Instead, defendant served notice of the tentative ruling, which the court adopted in full at the hearing. In future, defendant's counsel is reminded to submit the proposed order for the court's signature. Notwithstanding that the court did not sign the tentative ruling, that was the court's order and plaintiff had notice, both at the hearing and pursuant to notice of entry of the order on the tentative ruling, that the demurrer was sustained with leave to amend. Plaintiff has not filed a first amended complaint, and the time to do so has long since run.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant State Farm's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM - **LINE 10**

25-CLJ-03555

PCA ACQUISITIONS V, LLC VS KEVIN MIRA

PCA ACQUISITIONS V, LLC
KEVIN MIRA

HADA FERNANDEZ
LISA J. ESPADA

DEFENDANT KEVIN MIRA'S MOTION TO COMPEL RESPONSES TO SPECIAL INTERROGATORIES AND REQUEST FOR PRODUCTION OF DOCUMENTS C.C.P. 2030.290 C.C.P. 2031.300

TENTATIVE RULING:

Defendant Kevin Mira's unopposed Motion to Compel Responses to Special Interrogatories and Request for Production of Documents and for Monetary Sanctions is **GRANTED**. (Code Civ. Proc., §§ 2031.290, 2031.300.)

A. Plaintiff Failed to Serve Discovery Responses

When a party fails to serve a timely response to interrogatories, the propounding party may move for an order compelling responses. (Code Civ. Proc., § 2030.290.) The statute imposes no threshold showing of good cause, and there is no meet-and-confer prerequisite and no time deadline within which the motion must be filed. "Unlike a motion to compel further responses, a motion to compel responses is not subject to a 45-day time limit, and the propounding party does not have to demonstrate either good cause or that it satisfied a 'meet and confer' requirement." (*Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants* (2007) 148 Cal.App 4th 390, 404 (*Sinaiko*)). The court in *Sinaiko* further held that "once a party has failed to serve timely interrogatory responses, the trial court has the authority to hear a propounding party's motion to compel responses under section 2030.290, subdivision (b), regardless of whether a party serves an untimely response." (*Ibid.*)

Under section 2030.290 subdivision (a), the non-responding party "waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product." (Code Civ. Proc., § 2030.290 subd. (a).) The court may relieve a party from this waiver only upon a finding that: (1) the party subsequently served a response in substantial compliance with sections 2030.210, 2030.220, 2030.230, and 2030.240; and (2) the failure to timely respond was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2030.290.)

When a party fails to timely respond to a demand for inspection, copying, testing, or sampling, "the party making the demand may move for an order compelling response to the demand." (Code Civ. Proc., § 2031.300.) As in the case of a motion to compel responses to interrogatories, no showing of good cause, no meet-and-confer effort, and no 45-day deadline applies to motions to compel initial responses under Section 2031.300. (*Sinaiko, supra*, 148 Cal.App.4th 390; Code Civ. Proc., § 2031.300.) The non-responding party likewise automatically waives all objections, including those based on privilege or work product protection. (Code Civ. Proc., § 2031.300.) Relief from waiver is available on the same conditions as under section
